

1 **SENATE FLOOR VERSION**

2 April 24, 2025

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 HOUSE BILL NO. 1257

By: Strom of the House

and

Coleman of the Senate

6
7
8
9 [professions and occupations - payments of
10 deductibles or compensation by a roofing contractor -
11 effective date]
12

13 ~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

14 SECTION 1. AMENDATORY Section 1, Chapter 331, O.S.L.
15 2022 (59 O.S. Supp. 2024, Section 1151.30), is amended to read as
16 follows:

17 Section 1151.30. A. A residential or commercial roofing
18 contractor providing repairs or improvement services to be paid by
19 an insured from the proceeds of a property or casualty insurance
20 policy shall not, as an inducement to the sale or provision of goods
21 or services to an insured, advertise or promise to pay, directly or
22 indirectly, all or part of any applicable insurance deductible or
23 offer to compensate an insured for providing any service to the
24 insured. If a roofing contractor violates the provisions of this

1 section, the insurer to whom the insured tendered the claim shall
2 not be obligated to consider the estimate prepared by the roofing
3 contractor. Every roofing contractor shall provide a written
4 notification of the requirements of this section with its initial
5 estimate. The adjuster or insurer shall provide a written
6 notification of the requirements of this section in the initial
7 estimate relating to the claim.

8 B. Any person may file a written duly verified complaint with
9 the registrar alleging a violation of this section. The complaint
10 shall be on a form approved by the registrar and shall set forth the
11 alleged act or omission stated in subsection A of this section, and
12 a statement of sufficient facts upon which a reasonable person could
13 conclude that the act or omission specified in subsection A of this
14 section has been committed. All complaints filed with the registrar
15 shall be open to public inspection. Nothing in this section shall
16 be construed to require the complainant to first file a complaint
17 with the registrar before seeking relief or remedies allowed by law.

18 C. 1. The registrar shall forward all complaints alleging
19 violations of this section to the Insurance Department and the
20 Office of the Attorney General for investigation, enforcement, and
21 prosecution of any alleged violation.

22 2. A complaint received by the registrar pursuant to this
23 section shall be referred to the district attorney for appropriate
24

1 disposition as determined by the district attorney in his or her
2 discretion.

3 D. Nothing in this section shall be construed to authorize the
4 registrar to investigate or prosecute any violations of this
5 section.

6 SECTION 2. This act shall become effective November 1, 2025.

7 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
8 April 24, 2025 - DO PASS AS AMENDED BY CS
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24